

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #10	CCRB Case #: 201707637	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 09/18/2017 8:56 AM	Location of Incident: West 87th Street and Central Park West	18 Mo. SOL 3/18/2019	Precinct: 22
Date/Time CV Reported Mon, 09/18/2017 8:42 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/18/2017 8:42 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Damian Fana	12461	946976	CPK PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Hector Almonte	01249	933603	CPK PCT
2. POM Gustavo Sisa	19588	959993	CPK PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Damian Fana	Discourtesy: Police Officer Damian Fana spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed the following complaint with the CCRB on September 18, 2017, via telephone on behalf of § 87(2)(b).

On September 18, 2017, at approximately 8:42 a.m., in the vicinity of West 87th Street and Central Park West in Manhattan, § 87(2)(b) was stopped by PO Damian Fana assigned to the Central Park Precinct for smoking marijuana in public. During their interaction PO Fana allegedly cursed at § 87(2)(b) (**Allegation A – Discourtesy, Unsubstantiated**). § 87(2)(b) was arrested and issued a desk appearance ticket for § 87(2)(b) (Board Review 05).

§ 87(2)(b) did not interact with PO Fana or § 87(2)(b) and recorded the incident from across the street. Videos were provided by § 87(2)(b) of the incident (Board Review 06).

Findings and Recommendations

Allegation A - Discourtesy: Police Officer Damian Fana spoke discourteously to § 87(2)(b)



201707637_20180216_1712_DM.mp4

On September 18, 2017, at approximately 8:42 a.m., § 87(2)(b) was seated in her vehicle near the corner of West 87th Street and Central Park West in Manhattan. She was reading something on her phone when she heard loud voices yelling nearby. She looked across the street and saw an officer identified by the investigation as PO Damien Fana, assigned to the Central Park Precinct. § 87(2)(b) initially stated during her phone statement that she heard PO Fana say, “I don’t fucking care. I don’t fucking believe you. How the fuck would you feel?” and “Obviously you don’t think about shit like this.” During her in-person statement, § 87(2)(b) alleged that she heard several uses of the word “fuck” and “shit” from PO Fana, including the statement, “would you fucking smoke like that in your own home?” towards § 87(2)(b). § 87(2)(b) could not recall any other specific statements. § 87(2)(b) heard these statements from across the street and could not determine how many feet away she was. § 87(2)(b) recorded the incident from inside of her car, however PO Fana was inaudible as her window was up. § 87(2)(b) did not know the circumstances of § 87(2)(b)’s arrest and did not know him personally.

All avenues for contacting § 87(2)(b) were exhausted and § 87(2)(b) could not be reached for a statement. LexisNexis yielded one results for § 87(2)(b) and an unidentified individual answered and stated that he did not know anyone named § 87(2)(b). CLEAR yielded negative results for additional phone numbers. A search of the Family Tree Now website yielded negative results for additional contact information for § 87(2)(b). Three letters were sent to the address listed in § 87(2)(b)’s arrest report and the letters were not returned. § 87(2)(b) did not make any phone calls during his arrest and there were no phone numbers listed on his arrest report. § 87(2)(b)

Therefore § 87(2)(b) did not provide a statement to the CCRB.

PO Fana stated that he observed § 87(2)(b) smoking a marijuana cigarette on the corner of 87th Street and Central Park West. PO Fana, who was in a marked smart car, pulled over and approached § 87(2)(b) on foot. PO Fana recovered the lit marijuana cigarette from § 87(2)(b)’s hand and asked § 87(2)(b) for identification. § 87(2)(b) handed PO Fana his

identification with a mini police shield and card from the New Jersey police department. PO Fana asked § 87(2)(b) to identify who the materials belonged to and § 87(2)(b) stated that he knew someone in the New Jersey police department. PO Fana asked him for a phone number to contact the officer who the items belonged to and § 87(2)(b) could not provide a phone number. § 87(2)(b) changed his story several times about who the mini police shield and card belonged to. PO Fana stated that he did not curse at § 87(2)(b) and that the only thing he said to § 87(2)(b) was, “Are you freaking kidding me? I would never give my PBA card to someone who smokes marijuana.” PO Fana stated that this was what he told § 87(2)(b) verbatim, with no curse words. PO Fana handcuffed § 87(2)(b) for transportation to the stationhouse in order to be issued a desk appearance ticket. After § 87(2)(b) was handcuffed, PO Fana recovered four bags of marijuana from § 87(2)(b)'s front right pants pocket (Board Review 01). PO Fana called for an additional unit to transport § 87(2)(b) since PO Fana did not have a back seat in his smart car. PO Gustavo Sisa and PO Hector Almonte responded to the scene.

PO Sisa stated that he and PO Almonte arrived after § 87(2)(b) was already in handcuffs and did not witness any of the prior interaction between § 87(2)(b) and PO Fana. In his presence, he did not witness PO Fana curse at § 87(2)(b) and did not recall if PO Fana spoke to § 87(2)(b) at all. PO Sisa and PO Almonte transported § 87(2)(b) in their vehicle.

PO Almonte was not interviewed § 87(2)(g). PO Almonte was not present for the interaction between PO Fana and § 87(2)(b) § 87(2)(g).

§ 87(2)(b) stated that PO Fana cursed at § 87(2)(b) several times but could only recall one statement at the time of her interview. PO Fana denied cursing at § 87(2)(b) and stated that the only statement he made was, “Are you freaking kidding me? I would never give a PBA card to someone that smokes marijuana.” § 87(2)(b) recorded a portion of the incident but the conversation between PO Fana and § 87(2)(b) is inaudible in the recording. The ambiance and § 87(2)(b)'s GPS can be heard in the video, showing that the phone did pick up audio, but not the conversation across the street.

§ 87(2)(g)
It is therefore recommended that **Allegation A be closed as Unsubstantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 03).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 04).
- PO Fana has been a member of service for nine years and has been a subject in five CCRB complaints and seven allegations, of which one was substantiated.:
 - 201605373 involved a substantiated allegation of force. The board recommended formalized training and the NYPD imposed formalized training.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

